

23STCV25985 23STCV25985

County: los-angeles

Division: Civil Law and Motion

Department: 309

Hearing date: 2026-07-30

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Case Number: 23STCV25985 Hearing Date: July 30, 2026 Dept: 309

Superior Court of California

County of Los

Angeles

DEPARTMENT 17

TENTATIVE RULING

JAMES DAVIS, et al.

vs.

SCOTT EPPINGA, et al.

Case

No.: 23STCV25985

Hearing Date: July 30, 2026

Defendants/Cross-Complainants

Scott Eppinga, Benjamin Eppinga and Think Humble, Inc's motion to dismiss with prejudice is GRANTED.

On 10/24/2023, Plaintiffs James Davis, Paranotek, LLC, and Astra Veda Corporation (collectively, Plaintiffs) filed suit against Scott Eppinga, Bradley M. Listermann, Benjamin Eppinga, and Think Humble, Inc (THI).
On 4/24/2024, Plaintiffs filed a first amended complaint (FAC) alleging: (1)

breach of fiduciary duties; (2) breach of the duty of good faith and fair dealing; (3) fraud; and (4) unjust enrichment.

On 4/15/2026, Defendants/Cross-Complainants Scott Eppinga, Benjamin Eppinga and Think Humble, Inc. (collectively, Defendants) filed a motion to dismiss the claims of Plaintiffs James Davis and Paranotek, LLC against Eppingas with prejudice.

The motion is unopposed.

Discussion

Defendants seek an order dismissing this action with prejudice based on the partial settlement the parties reported to the Court at the hearing set on April 6, 2026, as follows:

The April 6, 2026 hearing was scheduled for the purpose, inter alia, of determining whether the Court should issue an order to show cause as to why Plaintiffs Davis and Paranotek, along with their attorney, should not be held in contempt for not complying with an earlier order imposing monetary sanctions. At the hearing on April 6, 2026, the parties advised the Court that they had reached an accommodation in which Eppingas agreed to withdraw and waive further proceedings related to the sanctions order and contempt motion, in return for Plaintiff Davis executing a Declaration and Davis and Paranotek dismissing their claims against Eppingas, with prejudice. See April 6, 2026 Minute Entry attached hereto as Ex. "A" and the Declaration of James Davis, attached as Ex. "B".

Given that this motion seeks an order granting the agreed-upon dismissal, and is unopposed, the Court finds good cause to grant the relief sought.

Based on the foregoing, Defendants/Cross-Complainants Scott Eppinga, Benjamin Eppinga and Think Humble, Inc.'s motion to dismiss with prejudice is granted.

It is so ordered.

Dated: July
, 2026

Hon. Jon R.
Takasugi

Judge of the
Superior Court

Parties who intend to submit on this tentative must send an email to the court at by 4 p.m. the day prior as directed by the instructions provided on the court website at www.lacourt.org. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If all parties to a motion submit, the court will adopt this tentative as the final order. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. For more information, please contact the court clerk at (213) 633-0517.